

QUALITY AGREEMENT
between
Pathway Medtech, LLC.
And
SILQ Technologies, Corp.

This Quality Agreement (“Quality Agreement” or “Agreement”) is entered into as of 02/12/2024 (the “Effective Date”), by and between SILQ Technologies, Corp. (hereafter “SILQ” or “Company”), a Florida state corporation, located at 323 Sunny Isles Blvd. 7th Floor, Sunny Isles Beach, FL 33160 and Pathway Medtech, LLC. (hereafter “Pathway”, or “Supplier”) a California state limited liability company, located at 8779 Cottonwood Ave. #105, Santee, CA 92071 (and hereafter together with Company, the “Parties”).

WHEREAS, the Company requires all entities supplying Products to the Company to enter into this Agreement to ensure a mutual understanding of how such commercial products, components and/or materials are to be procured, received, inspected, labeled, stored, shipped, serviced and/or tested, and how any related services are to be performed;

WHEREAS, SUPPLIER desires to (or currently does) provide and the Company desires to (or currently does) receive certain commercial products and related services;

NOW, THEREFORE, intending to be legally bound hereby, the Parties agree as follows:

This Agreement consists of the following:

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1.0 PURPOSE

This Agreement describes quality related requirements applicable to procurement, manufacturing, testing, control, service and delivery of the Products and/or services provided to the Company by Supplier as defined in related product/process specifications set forth in the applicable purchase order and/or drawings/files submitted by the Company to Supplier.

2.0 SCOPE

- 2.1 This Agreement defines the technical responsibilities of the parties in relation to the regulations listed in §4.0.
- 2.2 This Agreement is specific to the country(ies) where the Products will be distributed and outline the requirements for that country. The countries of distribution are:
- United States
- 2.3 This Agreement is not intended to be comprehensive and may be revised as necessary.
- 2.4 This Agreement does not and is not intended to cover commercial matters.

3.0 DEFINITIONS

For the purposes of this Agreement, the following definitions apply:

Term	Meaning
Authorized Representative (EC Rep)	Natural or legal person established within a country or jurisdiction who has received a written mandate from the manufacturer to act on his behalf for specified tasks with regard to the latter's obligations under that country or jurisdiction's legislation.
Business Day	A day other than Saturday, Sunday, or any public holiday.
CFR	The code of federal regulations
CGMP	All Applicable Laws relating to the design, manufacture and distribution of Manufacturer's Product(s), including the requirements of FDA (Quality System Regulation) Good Manufacturing Practices, the EU Medical Device Directives, the EU In Vitro Diagnostic Directive, ISO 13485: 2016 as well as all the statutory laws and regulations endorsed in the Territories of distribution.
Change Control Process	Process which evaluates (and communicates) a change, including impact of change (based on risk) on device, process, and environment.
Complaint	Written, electronic, or oral communication that alleges deficiencies related to the identity, quality, durability, reliability, usability, safety or performance of a medical device that has been released from the organization's control or related to a service that affects the performance of such medical devices.
Contract Manufacturer	Manufactures a finished device to another establishment's specifications.
Contract Sterilizer	Provides a sterilization service for another establishment's devices.
Correction(s)	Repair, modification, adjustment, relabeling, destruction, or inspection (including patient monitoring) of a device without its physical removal from its point of use to some other location
Design History File (DHF)	Compilation of records containing the design history of a finished device.
Device History Record (DHR)	Compilation of records containing the production history of a finished device.
Device Master Record (DMR)	Compilation of records containing the procedures and specifications for a finished device.
FDA	U.S. Food and Drug Administration

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Term	Meaning
Finished Device	Any device that is suitable for use or capable of functioning, whether or not it is packaged or labeled.
Foreign Exporter	Exports or offers for export to the United States (U.S.), a device manufactured, prepared, propagated, compounded, or processed in a foreign country, including devices originally manufactured in the United States. A foreign exporter must have an establishment address outside the U.S.
FSCA	Field Safety Corrective Action
Initial Importer	Any importer who furthers the marketing of a device from a foreign manufacturer to the person who makes final delivery or sale of the device to the ultimate consumer or user, but does not repackage, or otherwise change the container, wrapper, or labeling of the device or device package. The initial importer must have a physical address in the United States staffed by individuals responsible for ensuring the compliance of imported devices with all applicable FDA laws and regulations.
ISO	International Organization for Standardization
Labeling	Label, instructions for use, and any other information that is related to identification, technical description, intended purpose and proper use of medical device but excluding shipping documents. Information provided on a website may be considered as labeling. Labeling may be paper or electronic
Legal Manufacturer	Makes by chemical, physical, biological, or other procedures, any article that meets the definition of "device" in Section 201(h) of the Federal Food, Drug, and Cosmetic (FD&C) Act.
Maintain Complaint Files	Manufacturer that maintains complaints files according to 21 CFR Part 820.198.
Manufacturer	Makes by chemical, physical, biological, or other procedures, any article that meets the definition of "device" in Section 201(h) of the Federal Food, Drug, and Cosmetic (FD&C) Act.
MDR	Medical Device Reporting of adverse events to the FDA.
Non-conformity	The non-fulfilment of a specified requirement.
Notified Body	The institution charged by a competent authority with verifying compliance of medical devices.
Post-Market Surveillance (PMS)	Systematic process to collect and analyze experience gained from medical devices that have been placed on the market.
Product	The item(s) to be manufactured or services that Supplier provides to the Company
QMS	Quality Management System
Records	Documented output from performing a process.
Refurbisher	Restores finished devices to a condition of safety and effectiveness that is comparable to when new. This includes reconditioning (restoration to original specifications), repair, installation of certain software/hardware updates that do not changes the intended use of the original device, and replacement of worn parts.
Relabeler	Changes the content of the labeling from that supplied from the original manufacturer for distribution under the establishment's own name. A relabeler does not include establishments that do not change the original labeling but merely add their own name.
Remanufacturer	Any person who processes, conditions, renovates, repackages, restores, or does any other act to a finished device that significantly changes the finished device's performance or safety specifications, or intended use.
Repackager	Packages finished devices from bulk or repackages devices made by a manufacturer into different containers (excluding shipping containers).

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Term	Meaning
Reprocessor of Single Use Device (SUD)	Performs remanufacturing operations on a single use device.
Specification Developer	Develops specifications for a device that is distributed under the establishment's own name but performs no manufacturing. This includes establishments that, in addition to developing specifications, also arrange for the manufacturing of devices labeled with another establishment's name by a contract manufacturer.
U. S. manufacturer of export only devices	Manufactures medical devices that are not sold in the U.S. and are manufactured solely for export to foreign countries.

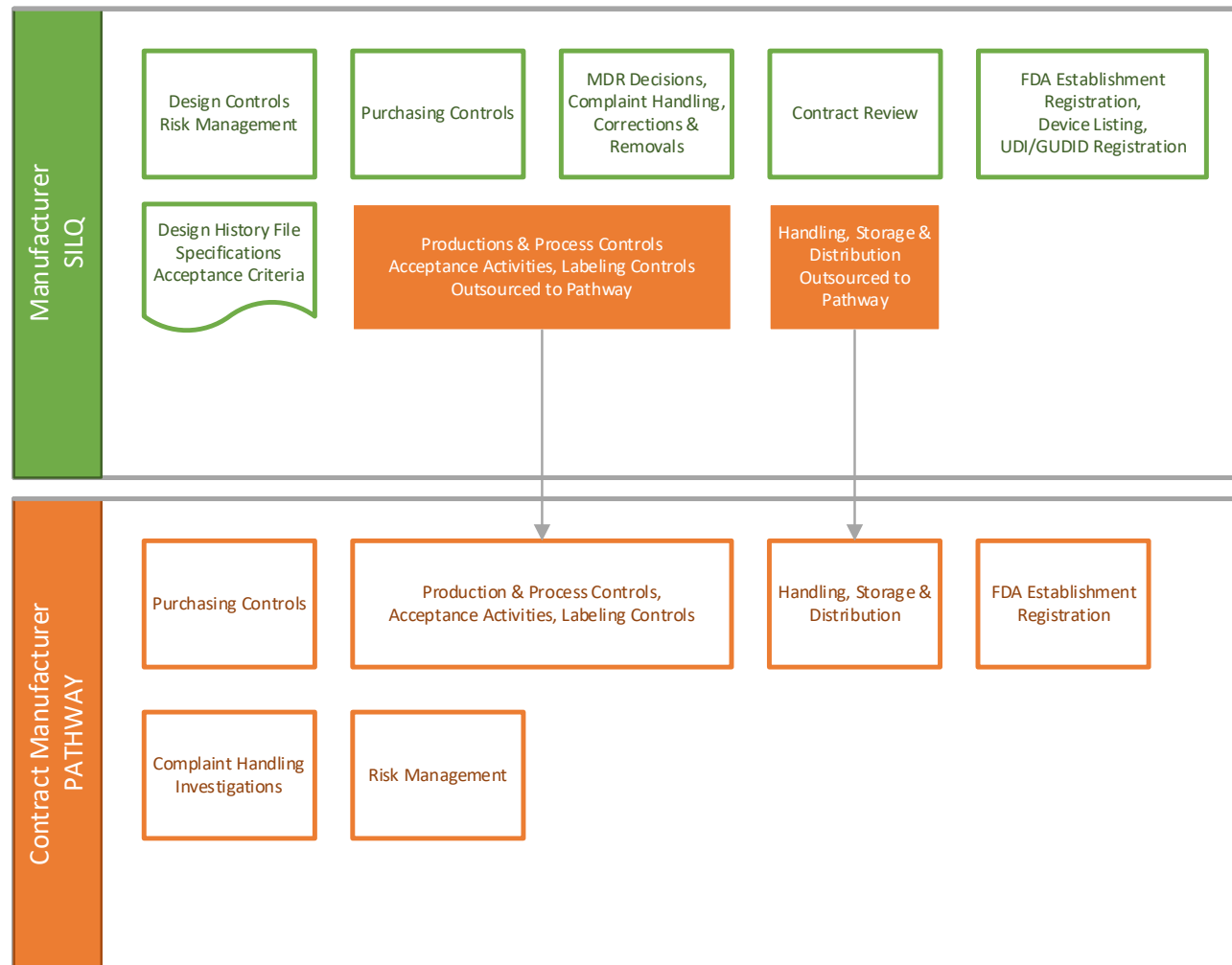
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4.0 APPLICABLE REGULATIONS AND STANDARDS

The following regulations and standards apply to this Agreement:

Regulation / Standard No.	Title
21 CFR 820	Code of Federal Regulations Title 21, Quality System Regulation, Food and Drug Administration
21 CFR 807	Code of Federal Regulations Title 21, Subchapter H-Medical Devices Part 807 Establishment Registration and Device Listing for Manufacturers and Initial Importers of Medical Devices
21 CFR 806	Code of Federal Regulations Title 21, Subchapter H-Medical Devices, Part 806 Medical Devices Reports of Corrections and Removals
21 CFR 803	Code of Federal Regulations Title 21, Subchapter H-Medical Devices, PART 803 Medical Device Reporting
21 CFR 801	Code of Federal Regulations Title 21, Subchapter H-Medical Devices, PART 801 Labeling
21 CFR 830	Code of Federal Regulations Title 21, Subchapter H-Medical Devices, PART 830 Unique Device Identification
ISO 13485:2016	Medical Devices - Quality Management System - Requirements for Regulatory Purposes
ISO 14971: 2019	Medical devices — Application of risk management to medical devices
ISO 15223:2021	Medical devices – Symbols to be used with medical device labels, labelling and information to be supplied

5.0 ROLES & RESPONSIBILITIES OVERVIEW



Specification Developer:

Develops specifications for a device that is distributed under the establishment's own name but performs no manufacturing. This includes establishments that, in addition to developing specifications, also arrange for the manufacturing of devices labeled with another establishment's name by a contract manufacturer.

Contract Manufacturer:

Manufactures a finished device to another establishments specifications.

Manufacturer:

Makes by chemical, physical, biological, or other procedures, any article that meets the definition of "device" in Section 201(h) of the Federal Food, Drug, and Cosmetic (FD&C) Act.

All establishment activities require the following Quality Management System Processes:
Corrective & Preventive Actions, Internal Audits, Management Review, Document Controls, Record Retention

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6.0 AGREEMENT ROLES

The following roles¹ apply to this Agreement:

Role(s)	PATHWAY	SILQ	N/A
Contract Manufacturer	X		
Contract Sterilizer			X
Foreign Exporter			X
Initial Importer			X
Legal Manufacturer		X	
Refurbisher			X
Repackager			X
Relabeler			X
Remanufacturer			X
Reprocessor of SUD			X
Specification Developer (Design Documentation)		X	
Design Controls		X	
U. S. manufacturer of export only devices			X
Maintains Complaint Files per 21 CFR 820.198		X	

¹ Roles are defined in accordance with 21 CFR Part 807: Establishments that are involved in the production and distribution of medical devices intended for commercial distribution in the United States (U.S.), including those that are imported for export only, are required to register annually with the FDA. The roles are based on the type of activity performed at that establishment.

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7.0 AGREEMENT RESPONSIBILITIES

§	Responsibilities	Both Parties	PATHWAY	SILQ
1	Quality Systems – General			
1.1	Shall maintain a Quality Management System (QMS) that is compliant to ISO 13485:2016 and US FDA 21 CFR 820.	X		
1.2	Shall maintain a Quality Management System (QMS) that is appropriate for the roles defined in Section 6.0 Agreement Roles.	X		
1.3	Shall notify of any substantive changes in its QMS that may impact PRODUCTS at least 90 days prior to implementation, when feasible. The changes shall include, but are not limited to, changes in status of FDA approval, clearance, or other regulated status, or ISO certifications, quality manual updates, changes to key personnel, etc.	X		
1.4	Shall provide copies of certifications, and recertifications when available.	X		
2	Facilities			
2.1	Shall maintain and ensure that all PRODUCTS are handled, stored, packaged, labeled, processed, manufactured, shipped or distributed shall be orderly and of suitable design, size, construction and location, including, maintaining: (i) adequate lighting, ventilation and water supply for the activities relating to the PRODUCTS; (ii) space for performing the activities; and (iii) the ability to separate discrete operations or processes relating to the PRODUCTS in order to prevent mixing or other contamination of PRODUCTS. Shall notify in writing at least 90 days prior with respect to proposed changes to facilities, related to the PRODUCTS prior to the implementation of such changes.		X	
3	Training			
3.1	Shall provide appropriate training to ensure that employees are competent and qualified to produce quality PRODUCTS. Shall review and document the required skills and competencies necessary for the production, inspection, handling, and delivery of PRODUCTS. Shall provide appropriate training to ensure that employees follow applicable procedures and instructions. Shall maintain employee records of training.	X		
4	Document Controls			
4.1	Shall establish a system for creating, controlling, revising and obsoleting documents throughout the history of the PRODUCTS and its life cycle.	X		
5	Records			
5.1	Shall retain (and if applicable shall cause its affiliates and subcontractors to retain) detailed written records of all their activities relating to the PRODUCTS (collectively referred to as "PRODUCT RECORDS"). Information included or referenced in the records includes finished PRODUCTS and package labels and labeling, label accounting information (labels/labeling produced or issued, used, sampled, rejected/destroyed), information regarding any environmental monitoring that takes place during manufacturing and, if required, testing, copies of release testing, if any, performed by PATHWAY, process deviations and approved process change if any. These records shall be available to the CUSTOMER via the electronic QMS System.		X	
5.2	Records shall be legible and stored to minimize deterioration and to prevent loss. Those records stored in automated data processing systems shall be backed up. Records shall be reasonably accessible during inspections and audits.		X	
5.3	Shall retain (and shall require any affiliates and subcontractors to retain) all PRODUCT RECORDS for a period of time equivalent to the design and expected life of the device, but in no case less than 2 years from the date of release for commercial distribution, which is not less than ten (10) years following PRODUCTS manufacture. Shall not alter, destroy or otherwise dispose of any PRODUCT RECORDS without prior written authorization. Shall provide copies of any or all PRODUCT RECORDS within three (3) business days from the date of written request for any PRODUCT RECORDS.		X	

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6	Specifications and Requirements			
6.1	Shall define the requirements and/or specifications for the PRODUCTS to be provided. These defined requirements and/or specifications could take many forms, including drawings, formal requirements or specifications documents, reference to commercial specification or catalog numbers, etc. These requirements and/or specifications may be provided in hardcopy, electronic, or other appropriate medium or format.			X
6.2	Changes to requirements or specifications are made by mutual agreement between parties. In addition to the agreement to make the change, the parties will agree upon the effective date of the change.	X		
7	Production and Process Control			
7.1	Process: Shall develop, conduct, control and monitor production processes to ensure that the PRODUCTS conforms to Specifications.		X	
7.2	Equipment and Calibration: Shall ensure that production equipment and quality measurement equipment, including mechanical, electronic, automated, chemical or other equipment, are: (i) suitable for the intended use; (ii) capable of producing valid results; (iii) operated by trained personnel; and, (iv) properly calibrated to the appropriate and suitable standard. Shall develop, maintain, and comply with schedules for adjustment, cleaning, calibration, and all other required maintenance. Shall maintain records of these activities and make them available upon request.		X	
7.3	Validation: Shall create a validation protocol (describing the planned activities) and a validation report (documenting the outcome of the planned activities). A change or a deviation from a validated process shall be reviewed and if appropriate revalidated. Shall maintain records of the validation and revalidated activities and make them available upon request.		X	
7.4	Automated Processes / Software: Shall validate the computers, software, or other automated methods used in production process(es) to ensure ability to fulfill intended use and meet quality requirements and specifications. Changes or upgrades shall be validated prior to implementation. Shall maintain records of these activities and make them available upon request.		X	
7.5	Shall create and maintain a process map for all steps from receiving through shipping.		X	
7.6	Shall create and maintain a process failure modes and effects analysis (pFMEA) for all steps from receiving through shipping.		X	
7.7	Inspection: Shall be responsible for conducting appropriate testing and/or conformance inspection (incoming, in-process and final) to ensure that the PRODUCTS will function reliably conforms to the Specifications. Shall create and maintain inspection plan that describes the methodology and sampling requirements. Shall maintain records of these activities and make them available upon request.		X	
7.8	Inspection: Shall be responsible for defining the inspection requirements (incoming, in-process and final) to ensure that the PRODUCTS will function reliably and conforms to the Specifications.			X
7.9	Nonconforming PRODUCT: Shall establish and maintain procedures to identify, control and recall PRODUCT that does not conform to or fulfill the Specifications. Such procedures shall address the identification, documentation, evaluation, segregation and disposition of nonconforming PRODUCT. Nonconforming PRODUCT shall not be used without prior written consent.		X	
7.10	Certificate of Analysis (CoA): Shall provide a CoA consistent with the specifications for each lot, batch, or serial number of the PRODUCTS supplied.		X	
7.11	Certificate of Conformance (CoC): Shall provide a CoC consistent with the specifications for each lot, batch, or serial number of the PRODUCTS supplied.		X	
7.12	Rework: Material subject to Rework must meet product and process requirements for the PRODUCTS. All rework and screening process/procedures		X	

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	must be approved in writing by PATHWAY/COMPANY prior to implementation. Rework activities, documentation and justification shall be clearly identified in the DHR. The Rework records and DHR shall be completed before the PRODUCTS is released for distribution.			
8	Deviations			
8.1	Shall not deviate from the Specifications (including, without limitation, approved procedures, drawings, methods or specifications concerning the PRODUCTS) without prior written consent.		X	
8.2	Deviations shall be performed and documented in the DHR before the PRODUCT is released for distribution.		X	
9	Change Control			
9.1	Shall notify COMPANY in writing for review and approval prior to implementing (i) any changes which will affect the form, fit or function of any of the PRODUCTS, (ii) any change to PATHWAY part number for a PRODUCT, (iii) any process changes (iv) any changes that require PATHWAY or a subcontractor to perform any work on items that interoperate with the PRODUCT, including but not limited to software updates, (v) any changes in packaging and labelling or (vi) any changes which require PATHWAY or a subcontractor to perform any retesting of the PRODUCT or which would invalidate safety or regulatory approvals (vii) changes in the location of manufacture of the PRODUCT. COMPANY shall have the right to accept or reject the proposed change. PATHWAY shall also provide notice to COMPANY of any name change.		X	
9.2	Change Requests shall be communicated to the PATHWAY via the electronic method for shared communication.			X
10	Design Controls			
10.1	Shall establish and maintain a design control procedure to define the stages of design and/or development processes, perform verification and validation activities appropriate to each design and/or development stage and define the responsibilities and authorities for design and/or development activities. Shall maintain design plans that describe or reference the design and development activities and define responsibility for implementation. Shall maintain records of these activities in a Design History File (DHF) and make them available upon request.	X		
10.2	Shall maintain the product(s) Design History File (DHF).			X
10.3	Shall establish and maintain a risk management file as part of the DHF. Shall maintain records of risk management and make them available upon request.			X
10.4	Shall submit 510k on behalf of COMPANY for regulatory clearance and correspond with regulatory body for additional requests.		X	
10.5	Shall provide design control activity support as requested by COMPANY.	X		
11	Corrective and Preventative Action			
11.1	Shall initiate a corrective action on request based upon reported or discovered PRODUCT / process nonconformities by COMPANY. Shall investigate the cause of the nonconformity and provide a corrective action plan no later than thirty (30) calendar days of receipt of a request. Corrective action plan shall include determination of root cause, implementation of the correction, the action to be taken to prevent recurrence, the plan for verification of effectiveness, and review of the effectiveness of the corrective action. Shall communicate Corrective Action plans and updates of progress at agreed upon intervals until completion. Shall implement the agreed corrective actions and effectiveness check within the agreed timeframe and provide the records to PATHWAY.		X	
12	Storage			
12.1	Shall establish and maintain procedures to control storage areas and stock rooms to prevent mix-ups, damage, deterioration, contamination or other		X	

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	adverse effects to PRODUCTS. Products shall be maintained at the required storage temperature.			
12.2	PATHWAY shall implement a process for stopping shipments and implementing containment measure on finished goods should it be requested by the COMPANY or directed by any regulatory authority or otherwise required. This process shall include the ability to identify and segregate products at any time in the resolution / disposition steps.		X	
12.3	Both parties are responsible for promptly informing each other of any potential quality issues of which it becomes aware, requiring shipment hold and/or removal of product from finished goods distribution channels.	X		
13	Purchasing Controls			
13.1	Shall not use any affiliate or subcontractor for any supply of components or services related to the PRODUCTS without notifying in advance in writing.		X	
13.2	Shall implement and maintain sub-tier supplier control. Control measures shall be sufficient to ensure that sub-tier suppliers' manufacture, package, label, test and release of PRODUCTS are consistent with this Quality Agreement. Shall maintain records of supplier controls and make them available upon request.		X	
13.3	Shall implement and maintain supplier control. Control measures shall be sufficient to ensure that sub-tier suppliers manufacture, package, label, test and release of PRODUCTS are consistent with this Quality Agreement. Shall maintain records of supplier controls and make them available upon request.			X
14	Distribution			
14.1	Shall pack and package the PRODUCTS using the agreed methods or best practices to protect the PRODUCTS from deterioration or damage during processing, storage, handling, and shipment.		X	
14.2	Shall maintain records of PRODUCT shipments which includes Packing Lists within the COMPANY'S Ship Station account.		X	
14.3	Shall establish and maintain procedures to ensure that only PRODUCT approved for release are shipped. Shall ensure that no obsolete, rejected, expired, or deteriorated PRODUCT ships, without prior written authorization.		X	
14.4	Shall approve customer orders and provide PATHWAY with the Sales Order for distribution in markets for which PRODUCTS have received regulatory market clearance. The Sales Order / Fulfillment Request shall be communicated to Pathway via a Ship Station account managed by the COMPANY.			X
14.5	PATHWAY shall maintain traceability for PRODUCT shipped on behalf of COMPANY to their customers (part number, lot number, customer name/address, quantity, shipment date).		X	
15	Identification and Traceability			
15.1	Shall properly identify product throughout the realization process and establish a system that identifies the production status, verifies product acceptance with regards to inspection and testing and properly controls product disposition.		X	
15.2	Shall complete appropriate documentation for each production lot, batch, or serial number to ensure traceability of the PRODUCTS. The records shall include: (i) the name of manufacturer / Supplier, (ii) the production date and the batch designation / serial number of the base materials used, (iii) the product designation with details of the batch / serial number of the product produced, (iv) Reference of adherence to international standards or specifications, as applicable.		X	
15.3	Shall establish and maintain procedures for a method of traceability for unique identification of each part or material lot.		X	
15.4	Shall maintain traceability of kitted materials received from COMPANY, and if a material does not have a "lot number" then traceability will only be maintained at the part number level.		X	
16	Labeling			

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16.1	Shall control all labeling and packaging operations to prevent labeling mix-ups. Shall keep records of these activities and make them available upon request.		X	
16.2	Labels and labeling shall be designed appropriate for their intended use.	X		
17	UDI			
17.1	Shall establish UDI per 21 CFR 801 Subpart B and 21 CFR 830 for product and maintain GUDID within the COMPANY GUDID account.		X	
17.2	Shall establish and maintain a current account for UDI/GTIN assignment with GS1			X
18	Customer Property			
18.1	Shall identify, verify, protect and safeguard COMPANY's property provided for use or for incorporation into PRODUCT. Shall notify COMPANY if property is lost, damaged, or otherwise found to be unsuitable for use, keep records of these activities and make them available upon request.		X	
18.2	COMPANY shall notify and provide PATHWAY with traceability of the property to be transferred from COMPANY to PATHWAY.			X
18.3	PATHWAY shall notify and provide COMPANY with traceability of the property to be transferred from PATHWAY to COMPANY.		X	
18.4	PATHWAY is responsible for inspection of COMPANY supplied materials used in the manufacturing process		X	
18.5	If the COMPANY has purchased the material, the COMPANY is responsible for communicating any issues with the material. The COMPANY shall be responsible for ensuring there is adequate documentation for the receipt and inspection of this material such as Certificate of Conformance or Analysis from the supplier and a copy of the associated Purchase Order. Purchase Orders for material ordered by COMPANY shall be provided to PATHWAY via the electronic method for shared communication.			X
18.6	PATHWAY shall maintain the finished goods inventory of coated catheters and provide weekly, biweekly inventory reports to COMPANY via Smartsheet or agreed upon communication method, thereby providing COMPANY Sales Team with visibility as to what they can sell.		X	
18.7	Upon Annual request of COMPANY, PATHWAY shall perform a physical count of raw material and finished goods inventory of COMPANY PRODUCT and report the results in the agreed upon format.		X	
19	Customer Feedback / Post-Market Surveillance			
19.1	Shall be responsible for initiating and managing post-market surveillance of PRODUCTS. Shall keep records of these activities and make available upon request.			X
20	Nonconforming Material			
20.1	Disposition of Nonconforming Material: Shall segregate, investigate, and disposition all nonconforming material. All dispositions, including concession (use-as-is) or rework dispositions require COMPANY written authorization. If PATHWAY requests authorization for a rework or concession disposition, PATHWAY shall document the disposition request including the inspection or test conducted, the actual results, and, if applicable, the proposed rework. PATHWAY shall update the production monitoring portion of the ISO 14971 Risk Management File to include information on the nonconformity.		X	
21	Complaints			
21.1	PATHWAY Received Complaints: If a complaint is received by PATHWAY, PATHWAY shall promptly provide COMPANY any information received by PATHWAY regarding product deficiencies or defects in the PRODUCT and any information that might otherwise constitute a complaint about the PRODUCT or would reasonably be considered material to the safety of the PRODUCT and/or the Product's intended use. Each party shall reasonably cooperate with the other in sharing any information that may constitute a complaint related to the PRODUCT. PATHWAY shall at all times reasonably cooperate with any requests		X	

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	arising from a COMPANY investigation, inspection or inquiry regarding the PRODUCT.			
21.2	COMPANY Received Complaints: COMPANY shall establish and maintain procedures for receiving, reviewing, and evaluating complaints and be the designated complaint handling unit.			X
21.3	COMPANY shall be responsible for any reporting to regulatory agencies resulting from the investigation of a complaint. Shall keep records of these activities, including any determination where reporting is not required.			X
21.4	Upon request of the COMPANY, PATHWAY shall receive returned product and perform investigation/inspection of such PRODUCT in support of complaint evaluations by the COMPANY.		X	
22	Regulatory Compliance			
22.1	Shall promptly notify COMPANY of the performance and results of any inspections, audits, formal visits, etc. of any regulator, notified body, or other certification body acting in a formal capacity. Shall promptly COMPANY of any inspection or audit findings that impact the safety, effectiveness, conformity, availability, or quality of any PRODUCT that PATHWAY provides to COMPANY.		X	
22.2	Shall promptly notify COMPANY of all pertinent correspondences between PATHWAY and any Regulatory Authority that in any way may impair the ability of PATHWAY to provide PRODUCT, including enforcement actions.		X	
23	Audits			
23.1	For the purposes of Supplier Qualification or for cause to identify root cause or corrective action necessary to address performance nonconformities, PATHWAY shall permit COMPANY to conduct Supplier Audits of its operations, personnel, and documentation. COMPANY shall submit notification and audit strategy information to PATHWAY in advance of the audit and shall take all necessary steps not to unduly interfere with the performance of PATHWAY's business operations. COMPANY shall provide an audit report within two weeks of completing a Supplier Audit and issues any formal requests for Corrective Action, based upon evidence-based findings. PATHWAY shall respond with a Corrective Action plan to address the nonconformities and timeline for completion per Corrective Action Plan requirements above.	X		
23.2	COMPANY shall notify PATHWAY if there is any regulatory investigation or inquiry regarding products within 5 days.			X
23.3	COMPANY and PATHWAY shall work together to respond to regulatory agencies if in response to an issue regarding product distributed.	X		
23.4	PATHWAY and COMPANY shall provide necessary documentation required to support ongoing audits (both internal and external) within 24 Hours.	X		
23.5	PATHWAY shall inform COMPANY of any contact from a governmental or regional legally appointed authority that impacts materials or processes.		X	
23.6	PATHWAY shall notify COMPANY of regulatory inspection by such legally appointed body at least fourteen (14) days prior to the event, or as soon as they become aware.		X	
23.7	Both parties reserve the right to audit and monitor each other and/or its Third Party manufacturers' and suppliers' facilities once per year (except for cause) for compliance with this Quality Agreement, ISO 13485:2016 and all other relevant regulations. All representatives conducting audits shall comply with applicable safety and security rules of the site and shall conduct audits during normal business hours having given reasonable notice.	X		
24	Recalls, Corrections, Field Actions			
24.1	Both Parties shall cooperate in the exchange of information required to effectively manage recalls, corrections, field actions, and regulatory event reporting. Both Parties shall work together to manage any Corrective Action associated with nonconforming or otherwise afflicted PRODUCTS.	X		

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§	Responsibilities	Both Parties	PATHWAY	SILQ
24.2	Shall be responsible for initiating and managing a recall or field correction in the event that it is appropriate.			X
24.3	Regulatory Event Reporting: Shall be responsible for required regulatory event reporting (i.e. Medical Device Reports). Shall keep records of these activities.			X
24.4	Recalls: COMPANY shall have the sole authority to declare a recall of any PRODUCT if COMPANY believes there is or may be a potential significant health hazard or non-compliance with applicable government regulations.			X
25	Risk Management			
25.1	Shall be responsible to identify, evaluate, analyze, assess and mitigate potential product issues as part of the total product life-cycle process in accordance with ISO 14971.			X

8.0 REGULATORY RESPONSIBILITIES

§	Responsibilities	Both Parties	PATHWAY	SILQ
26	Regulatory Product Submissions and Approvals by Country			
26.1	Shall identify the classification of the medical device per requirements by country of distribution.			X
26.2	Shall prepare a regulatory submission plan for PRODUCTS to gain market clearance or approval from regulators			X
26.3	Shall maintain a change control process that includes a regulatory assessment to determine whether a new regulatory filing is required for changes to the PRODUCTS			X
26.4	Shall provide support for a regulatory submission as requested by COMPANY.		X	
27	Facility Registration			
27.1	Shall complete the annual FDA facility registration as required by the US Food and Drug Administration	X		
27.2	Shall submit and maintain a current Device Listing with the FDA			X
27.3	Shall apply for a medical device manufacturing license from the CA Food and Drug Branch.			X
28	Customer Related Processes			
28.1	Shall submit Purchase Orders via the electronic method for shared communication for PRODUCT.			X
28.2	Shall review the requirements related to product. This review shall be conducted prior to the organization's commitment to supply product to the COMPANY (e.g., submission of tenders, acceptance of contracts or orders, acceptance of changes to contracts or orders) and shall ensure that: a) product requirements are defined and documented; b) contract or order requirements differing from those previously expressed are resolved; Shall provide a confirmation of the Purchase Order and the corresponding Work Order associated with the Purchase Order.		X	
28.3	Shall submit Purchase Order for the consignment of coating material.		X	
28.4	Shall be responsible for the order, manufacture, receipt, inspection, issuance of lot number, expiration date (shelf life) of the coating material. This information shall be provided on a Certificate of Conformance to Pathway upon fulfillment of the Purchase Order.			X

Pathway Medtech, LLC.	Type:	Quality Agreement	Doc. No.:	QA-SLQ-01	Revision:	B
PATHWAY and SILQ						

9.0 CONTACT LIST²

Pathway Contacts

Name	Email Address	Title / Responsibilities
Arthur Deptala	adeptala@pathwaymedtech.com	CEO
Aaron Rogers	arogers@pathwaymedtech.com	Director of Regulatory and Quality
Karim Natafji	knatafji@pathwaymedtech.com	Project Manager
Amanda Cox	acox@pathwaymedtech.com	Office Manager / Accounting

SILQ Contacts

Name	Email Address	Title / Responsibilities
Octavio Cruz-Uribe	tavi@biomdg.com	Regulatory / Quality
Bryan Wong	bryan@biomdg.com	Quality
Corina Spiridon	corinas@silq.tech	Administration / Accounting
D. Verne Sharma	vernes@silq.tech	Executive Management
Chuck Greiner	chuckg@silq.tech	Sales
Brian McVerry	brianm@silq.tech	Manufacturing
Ethan Rao	ethanr@silq.tech	R&D

² These contacts may be updated by the parties from time to time in writing.

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PATHWAY and SILQ						

10.0 QUALITY RECORDS

The following Quality Records are generated and maintained by Pathway as a result of this agreement:

Quality Process	Record Type
Quality System (General)	Certificates, Registrations, Licenses
Training	Training Records
Document Control / Change Control	Controlled documents Device Master Record (DMR) Engineering Change Order (ECO) Deviations (DEV)
Quality Records	Signature Log
Risk Management	Risk Management Report (pFMEA)
Facilities / Storage	Monitoring Records Cleaning Records
Production & Process Controls	Device History Record (DHR)
Calibration Program	Calibration Records
Preventive Maintenance	Preventive Maintenance Records
Process Validation	Protocols / Reports
Supplier Qualification	Supplier Records
Inspection	Inspection Records
Nonconforming Material	Nonconforming Report (NCR)
Corrective Action / Preventive Action	CAPA Records
Purchasing	Purchase Orders (PO)
Customer Related Processes	Sales Orders (SO)
Distribution	Distribution Records
Quality Audits	Audit/Inspection Records

11.0 AGREEMENT MAINTENANCE

- 11.1 This Agreement will be reviewed periodically and updated as necessary. If Supplier requires a Quality System audit, this Agreement shall be reviewed at the time of audit.
- 11.2 No modification or amendment of this Agreement is effective unless it is in writing and signed by individuals with authority to bind the Company and Supplier, respectively.

12.0 CHANGE HISTORY

Revision	Change Description
A	Initial Release
B	Update format (T-013 rev B), Update 20.1 to include all dispositions.

Pathway Medtech, LLC.	Type:	Quality Agreement	Doc. No.:	QA-SLQ-01	Revision:	B
PATHWAY and SILQ						

13.0 APPROVAL

IN WITNESS WHEREOF, the Parties hereto have caused this Quality Agreement to be executed by their respective duly authorized officers as of the Effective Date.

	COMPANY	SUPPLIER
By:	Silq Technologies Corp	Pathway Medtech
Name:	D. Verne Sharma	Arthur Deptala
Title:	CEO	CEO
Date:	03/04/2024	02/12/2024
Signature:	<u><i>D. Verne Sharma</i></u> D. Verne Sharma (Mar 4, 2024 09:56 EST)	<u><i>Arthur Deptala</i></u> Arthur Deptala (Feb 12, 2024 13:55 PST)

Signature: *Arthur Deptala*
Arthur Deptala (Feb 12, 2024 13:55 PST)

Email: adeptala@pathwaymedtech.com

QA-SLQ-01_B_QUALITY AGREEMENT Pathway & SILQ 02/14/2024

Final Audit Report

2024-03-04

Created:	2024-02-12
By:	Aaron Rogers (arogers@pathwaymedtech.com)
Status:	Signed
Transaction ID:	CBJCHBCAABAAiqcFH80XIVJLUiE7cMI7xun8RKk3Aaqu

"QA-SLQ-01_B_QUALITY AGREEMENT Pathway & SILQ 02/14/2024" History

-  Document created by Aaron Rogers (arogers@pathwaymedtech.com)
2024-02-12 - 5:30:59 PM GMT
-  Document emailed to Verne Sharma (vernes@silq.tech) for signature
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-  Document emailed to Arthur Deptala (adeptala@pathwaymedtech.com) for signature
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-  Email viewed by Verne Sharma (vernes@silq.tech)
2024-03-04 - 2:55:30 PM GMT
-  Signer Verne Sharma (vernes@silq.tech) entered name at signing as D. Verne Sharma
2024-03-04 - 2:56:33 PM GMT
-  Document e-signed by D. Verne Sharma (vernes@silq.tech)
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-  Agreement completed.
2024-03-04 - 2:56:35 PM GMT